

**Superior Court of the State of California
County of Orange**

DEPT C13 TENTATIVE RULINGS

The Honorable Nico A. Dourbetas

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 4 p.m. on the day before the motion is set to be heard. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5213. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

Appearances: Counsel may appear by video on Zoom.

1. Visit <https://www.occourts.org/media-relations/aci.html>

Date: July 17, 2026

2	Pimentel vs. Trider 2024-01388480	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Answers to Form Interrogatories 3. Motion to Compel Answers to Form Interrogatories 4. Motion to Compel Answers to Special Interrogatories 5. Motion to Compel Production Defendants Trider Corporation and Alan Trider's motion to compel David Pimentel to serve verified responses to Special
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		Interrogatories, Set One, TC's Form Interrogatories – General, Set One, TC's Form Interrogatories – Employment, Set One, TC's Requests for Production Of Documents, Set One, and Trider's Form Interrogatories – Employment, Set One are all GRANTED. Pimentel to provide code compliant, verified responses to the discovery, without objection, within 10 days. Trider is awarded sanctions in the total amount of \$1,380.00 against Pimentel, payable within 30 days. Trider shall give notice.
5	Reddick vs. General Motors, LLC 2024-01439656	1. Demurrer to Complaint 2. Motion to Strike Complaint Demurrer to Complaint Defendant General Motors LLC's unopposed demurrer to complaint is SUSTAINED with 10 days leave to amend. The fifth cause of action for fraudulent inducement-concealment appears time-barred on its face. (See Code Civ. Proc., § 338, subd. (d).) The claim is based on fraud occurring at the time of the plaintiffs' purchase of the vehicle on or about 5/28/16, and defendant's alleged failure to disclose the "transmission defect." (See Compl. ¶¶ 6, 47-55.) The statute of limitations for fraud is three years, and the claim "is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constitute the fraud." (Code Civ. Proc., § 338, subd. (d).) But California law recognizes a general, rebuttable presumption, that plaintiffs have knowledge of the wrongful cause of an injury (see Grisham v. Philip Morris U.S.A., Inc. (2007) 40 Cal.4th 623, 638), and the complaint alleges the subject "[d]efects and nonconformities to warranty manifested themselves within the applicable express warranty period, including but not limited to